

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 1 of 25

Work Instruction

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Overview

Purpose	This document describes the process for making reportability decisions (RD) and regulatory reporting to the United States Food and Drug Administration (FDA).
Scope	This document applies to all functions that perform activities related to medical device reportability decision making and reporting to the FDA in accordance with 21 CFR 803 and 820. NOTE: Reportability decisions and regulatory reporting requirements to the FDA also apply to events occurring on US military bases located outside of the US.
Roles	Formally Designated Complaint Handling Unit ▪ Operating Unit (OU) Complaint Unit

Table of Contents

Process Overview	8
Process Detail.....	8
1. Make Reportability Decision	8
2. Regulatory Reporting	11
3. Additional Information & Supplemental Regulatory Reports	13
4. Regulatory Inquiry.....	15
References.....	15
Quality Records	16
Appendix A – US Reportability Decision Trees.....	17
Appendix B – Reportability Decision Rationale Code Matrix	20
Appendix C – US Reporting Types and Timelines	23
Appendix D – Basic Requirements for Importers and Distributors	25

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 2 of 25

Work Instruction

Medtronic

Terms and Definitions

Term	Definition	Source
Aware Date	The date that an employee of Medtronic, or an entity acting on Medtronic's behalf, acquires information that reasonably suggests that a reportable event has occurred. NOTE: Aware Date may or may not be the same date as Notify Date. See 054-P044 <i>Medical Device Reporting, Appendix A</i> for additional detail and examples of Aware Date vs. Notify Date.	Medtronic
Caused or contributed	A death or serious injury that was or may have been attributed to a medical device, or that a medical device was or may have been a factor in a death or serious injury, including events occurring as a result of: – Failure – Malfunction – Improper or inadequate design – Manufacture – Labeling or – User error NOTE: When determining if the Medtronic device may have caused or contributed to an event, the treating physician's device relatedness determination may be a factor in this assessment, but it cannot be the sole determining factor that results in the decision that the Medtronic device did not cause or contribute to the event	21 CFR 803 Source for "NOTE": Medtronic
Concomitant	Products in use at time of the event. This may include, but is not limited to, products that are in use as part of a system. This should include all products in the complaint allegation that may have contributed to the event. NOTE: Non-Medtronic products which were included in the complaint allegation would be considered concomitant if they contributed to the event.	Medtronic
Distributor	Any person, other than the manufacturer or importer, who furthers the marketing of a device from the original place of manufacture to the person who makes final	Medtronic

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 3 of 25

Work Instruction

Medtronic

	delivery or sale to the ultimate user. E.g., Original Equipment Manufacturer (OEM) relationship.	
Field Corrective Action (FCA)	Removal or correction of any distributed product to address a Risk to Health or to address a product violation against which a regulatory authority takes legal action. NOTES: ▪ In this definition, <i>distributed product</i> refers to product units that are outside Medtronic Control. ▪ Market withdrawals, stock recoveries, and routine servicing are not considered FCAs. Retrieval of unused clinical investigational product as part of routine conduct of a clinical study (e.g., return of unused devices following completion of enrollment) is not considered an FCA.	Medtronic
Importer	Any person who imports a device into the United States and who furthers the marketing of the device from the original place of manufacture to the person who makes final delivery or sale to the ultimate user of the device.	21 CFR 803
Life-Threatening	An adverse event where the patient was at substantial risk of dying at the time of the adverse event, or, continued use of the device might have resulted in the death of the patient. NOTE: If it is unclear if the event constitutes a substantial risk of death, consult with a Person Qualified to Make a Medical Judgment.	FDA's General Instructions for Form FDA 3500A MedWatch Source for "NOTE": Medtronic
Likely	Once a malfunction has caused or contributed to a death or serious injury, a presumption is made that the malfunction is <i>likely</i> to cause or contribute to a death or serious injury. NOTES: ▪ All future malfunctions of that type are reportable; since it is assumed they will recur and are likely to result in death or serious injury. ▪ Exceptions to this rule may be established in collaboration with team leadership and with a formal request submitted to the FDA as per the 2016 Medical Device Reporting for Manufacturers guidance document.	2016 Medical Device Reporting for Manufacturers guidance document Source for "NOTE": Medtronic

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 4 of 25

Work Instruction

Medtronic

	▪ If the risk documentation for a device indicates a malfunction has a high severity and probability, it also considered “likely” to result in injury were it to recur. ▪ Malfunction decisions should be maintained within local reportability guidance documents.	
Malfunction	A failure of the device to meet its performance specifications or otherwise perform as intended. Performance specifications include all claims made in the product labeling. The intended performance of a device refers to the intended use for which the device is labeled or “marketed” and include uses commonly applied in the medical community. Use errors may also be considered a malfunction despite the fact that the device did not fail to meet specifications (see Use Error definition below). NOTE: A failure of a device to meet a specification that does not affect the performance (either intended or labeling claims) is not considered a malfunction, (e.g., cosmetic defects).	Medtronic
Manufacturer	Any person, who manufactures, prepares, propagates, compounds, assembles, or processes a device by chemical, physical, biological, or other procedure. The term includes any person who: – Repackages or otherwise changes the container, wrapper, or labeling of a device in furtherance of the distribution of the device from the original place of manufacture. – Initiates specifications for devices manufactured by a second party for subsequent distribution by the person initiating the specifications; or – Manufactures components or accessories that are medical devices and that are (1) ready to be used and are intended to be commercially distributed and intended to be used as is, or (2) processed by a licensed practitioner or other qualified person to meet the needs of a particular patient.	21 CFR 803
Medical Device Reportable Event/Medical Device Report (MDR)	Report filed to FDA when a complaint reasonably suggests that a marketed device may have caused or contributed to a death or serious injury or has malfunctioned and the device or similar device marketed by Medtronic would be likely to cause or	Medtronic

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 5 of 25

Work Instruction

Medtronic

	contribute to a death or serious injury if the malfunction were to recur.	
Medical or Surgical Intervention	Any deliberate attempt to modify a health outcome, including drugs, surgical procedures, use of other devices, psychological treatments, and process-of-care changes (including hospitalization). General first aid is not considered a medical or surgical intervention.	Medtronic
Notify Date	The date when a Medtronic Employee/Agent was initially informed of a potential complaint. Notify Date may or may not be the same as Aware Date (see Aware Date definition above). NOTE: See 054-P044 Medical Device Reporting Appendix A for additional detail and examples of Aware Date vs. Notify Date.	Medtronic
Original Equipment Manufacturer (OEM) Product	An external supplier of a finished device, drug, biologic, human tissue or combination product which: - Owns the design and manufacture; - Is designated as the Legal Manufacturer; and - Owns primary regulatory responsibility. Medtronic may perform certain other regulatory actions / responsibilities (e.g., product registration and listing) in specific geographies.	Medtronic
Person Qualified to Make a Medical Judgment	A person who has the background needed to judge the severity of an event, device relationship to event, or the likelihood of harm if the event type were to recur. Persons qualified to make a medical judgment include physicians, nurses, risk managers, and biomedical engineers. They may be an employee of Medtronic, or an outside consultant.	Medtronic
Permanent Impairment or Damage/ Permanent/ Permanent Disability	Irreversible impairment or damage to a body structure or function, excluding trivial impairment or damage. NOTE: If it is unclear if the impairment/damage is trivial, determination shall be made by a Person Qualified to Make a Medical Judgment. Data inputs into this decision may include, but are not limited to, the following: - The risk assessment document assigned severity for the failure mode - Hazard analysis and/or situation analysis for the failure mode - Assessment of the severity of the event	21 CFR 803 Source for "NOTE" Medtronic

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 6 of 25

Work Instruction

Medtronic

Precedent Event	An event where a device malfunction causes or contributes to death or serious injury, where the malfunction was previously considered unlikely to result in death or serious injury. Once a malfunction causes or contributes to a death or serious injury, the malfunction is considered likely to cause or contribute to serious injury if it were to recur.	Medtronic
Reasonably Known	When submitting a Medical Device Report, Medtronic must submit all information that is reasonably known to Medtronic. FDA considers the following information to be reasonably known to Medtronic: – Any information that Medtronic can obtain by contacting a user facility, importer, or other initial reporter. – Any information in Medtronic's possession; or any information that Medtronic can obtain by analysis, testing, or other evaluation of the device.	Medtronic
Reasonably Suggest	Any information, including professional, scientific, or medical facts, observations, or opinions that would cause you to come to a reasonable conclusion that a device has caused, or may have caused or contributed to a MDR reportable event.	Medtronic
Regulatory Inquiry (RI) - Also Request for additional Information (RFAI)	A request for information from regulatory authorities and/or notified bodies. Possible subjects of regulatory inquiries include, but are not limited to, complaints, regulatory reports, professional publications, and presentations, user reported events, regulatory report trending information. Excludes requests for information related to regulatory submissions, audit activities, and general compliance requests.	Medtronic
Remedial Action	Any action other than routine maintenance or servicing of a device necessary to prevent recurrence of a reportable event. Action taken to correct only a single device should not be considered a remedial action.	Medtronic
Remote (risk)	To be defined by each business utilizing occurrence probabilities outlined in the risk management procedure and/or risk management file for the product.	Medtronic
Risk of Substantial Harm to Public	An event type that results in imminent risk of death, serious deterioration in state of health, or serious illness that requires prompt remedial action, events that are of	Medtronic

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 7 of 25

Work Instruction

Medtronic

Health/Serious Public Health Threat	significant and unexpected nature such that they become alarming as a potential public health hazard, or the possibility of multiple deaths occurring at short intervals.	
Serious Injury	An injury or illness that: – Is life threatening; or – Results in permanent impairment of a body function or permanent damage to a body structure; or – Necessitates medical or surgical intervention to preclude permanent impairment of a body function or permanent damage to a body structure.	21 CFR 803
Similar Device	In general, a device is considered to be “similar” to another device if the devices have the same: – Basic design and performance characteristics related to device safety and effectiveness; and – Intended use and function; and – Device classification and product code. Other factors that may be used to determine whether devices are similar include brand name, common name, and whether the devices were introduced into commercial distribution under the same pre-market notification 510(k) or the same pre-market approval (PMA) application number.	Medtronic
System	Multiple devices approved as a system by FDA under the same PMA or 510(k), or otherwise approved as a system by a regulator.	Medtronic
System Report	Medical device reporting of an event where multiple devices or a system, as approved or cleared by FDA, meet reporting requirements and one report is filed for all devices.	Medtronic
Use Error	An error regarding the use of a device, made by the person using the device, that is inconsistent with the approved instructions for use (IFU) or other training provided to the user. Act or omission of an act, that has a different result to that intended by the manufacturer or expected by the operator of the medical device (unintended use against IFU).	Medtronic
Working Day	Any day from Monday through Friday, excluding United States Federal holidays.	Medtronic

Process Overview



- Product Complaint

- Decision Rationale
- Regulatory Report
- Record of Inquiry

Process Detail

1. Make Reportability Decision

Step	Role	Action
1.	Operating Unit (OU) Complaint Unit	Review the event and associated information that is necessary to make reportability decision(s) (RDs) for the event.
2.		Obtain a consultation from a Person Qualified to Make A Medical Judgement (PQMMJ) if medical judgement is needed to determine: ▪ If the event is a device related death or serious injury; or ▪ If the malfunction would be likely to cause or contribute to death or serious injury if it were to reoccur If a PQMMJ consultation is obtained, the complaint record should contain: ▪ The information the PQMMJ used to make their determination of relatedness between the device and event; and ▪ The results of the PQMMJ review; and ▪ The name and credentials of the PQMMJ who reviewed the event (ex: Jane Smith, RN)
3.		▪ Make an RD for every product involved in the event based on information reasonably known. Use the following documents as needed to complete the RD:

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

Revision

P

Page 9 of 25

Medtronic

- Use Appendix A - US Reportability Decision Trees to determine the RD and rationale for the RD. The following resources may be used for guidance:
 - D00788857, United States FDA Reportability Guidance
 - D00788855, Field Alert Reporting (FAR)
 - Applicable Product reporting matrix or coding guidance per local processes

- To make the RD for events involving combination products, drug products or human tissue/biologics refer to D00788854, *Combination Products/Drug Product and Tissue-based Product Complaint Process*.

- For Original Equipment Manufacturer (OEM) products, reporting responsibility is applicable if Medtronic is the Importer for the product in the US and the event resulted in Death or Serious Injury. Consult Regulatory Affairs and Supplier Quality as needed to confirm whether Medtronic is the Importer and therefore has some reporting responsibilities.

When making the RD for events involving OEM products, input received from the OEM may be considered as needed to inform the RD. Where Medtronic is responsible for reporting, the final decision will be made per Medtronic process.

NOTES:

- A device does not have to malfunction for it to cause or contribute to a serious injury.
- For complaints involving multiple Medtronic products which are approved by the FDA as a system, reporting decisions may be made for the system and must be documented to clearly indicate a system report.
- Complete a separate RD for each device/system involved in an event. This may result in multiple MDR reportable RDs, and therefore multiple regulatory reports for the same event.
 - For example, if Medtronic receives information which indicates that more than one Medtronic device may have contributed to one MDR reportable event, and it cannot be determined which device(s) actually caused or contributed to the event or which device(s)

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

Revision

P

Page 10 of 25

Medtronic

		malfunctioned, a separate report should be submitted for each device potentially involved in the event. – For example, if Medtronic receives information which indicates that one component of a system may have contributed to an MDR reportable event, a report may be submitted for the system as a whole. ▪ Events occurring during a pre-approval clinical study, where the device is listed in the approved protocol, shall be reported under the applicable Investigational Device Exemption (IDE) regulations by the clinical team and not MDR regulations (21 CFR 803). – An exception to this is possible malfunction events that occur in IDE studies, involving new indications or uses of approved devices, shall be assessed for reportability as malfunctions for the approved device.
4.		For events involving products where Medtronic is not the Manufacturer but is acting as Distributor or Importer, e.g., OEM products, refer to Appendix D <i>Basic Requirements for Importers and Distributors</i> .
5.		If the event is within scope of a field corrective action (FCA) which has been reported to the FDA, ensure that all complaints referenced in the associated initial FCA Plan 806 report or Health Risk Assessment (HRA) are submitted as MDRs. See D00105362, <i>Complaint Handling Field Corrective Action Management</i> for guidance including identifying and confirming product scope of a FCA
6.		▪ Document the RD and RD rationale in the complaint record. Reporting rationale is required for all reportable and non-reportable events. – The decision tree in Appendix A and Appendix B, in combination with any product specific criteria established by the business, provides the reporting rationale. ▪ The complaint file must include all of the information that was used to determine whether or not a device-related event was reportable.
7.		If the reportability decision is not consistent with the recommendations of existing guidance (e.g., it is a precedent event that has a higher severity than previously reported), make the appropriate RD based on the event, and document the rationale for the RD.

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 11 of 25

Work Instruction

Medtronic

		▪ Potential situations that may impact reportability and may require updates to existing guidance include: – Serious injury occurs from a device malfunction typically considered non-reportable. If a potential precedent event is identified, follow the process outlined in D01175970, <i>United States Medical Device Reporting Precedent Event Identification and Escalation</i>. – Serious injury occurred from a device malfunction and reporting guidance tools do <i>not</i> contain instructions to ensure consistent reporting upon recurrence. Refer to D01175970. ▪ Note: To ensure consistent reporting, malfunction recurrence should be reported regardless of timeframe of product use, impact to patient, stage of malfunction presentation, or presence of a backup device. See D00788857 for additional information. – HRA assessment or other risk assessment/investigation that determines that the failure mode has, or is likely to, cause or contribute to a serious injury or death were it to recur. Refer to D00995278, <i>Medical Device Reporting Determination Related to Risk Assessments</i> for additional information. – A Field Corrective Action (FCA) that is reported to FDA as an 806 report. Refer to D00105362 for additional information.
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2. Regulatory Reporting

Step	Role	Action
1.	Operating Unit (OU) Complaint Unit	Initiate the appropriate type of regulatory report per <i>Appendix C - US Reporting Types and Timelines</i>
2.		Determine the type of report and required timeframes: ▪ A Serious Public Health Threat- report no later than 5 working days after the date an employee with managerial or supervisory responsibilities becomes aware that:

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

Revision

P

Page 12 of 25

Medtronic

Step	Role	Action
		- An MDR reportable event necessitates remedial action to prevent an unreasonable risk of substantial harm to the public health. - The FDA has made a written request for the submission of a 5-day report. ▪ An Initial Report of Death, Serious Injury or Malfunction- report no later than 30 calendar days after the aware date. ▪ A supplemental/follow up report- report within 30 calendar days of receiving the information that was not provided in the initial report (see Section 3). ▪ An Alternative Summary Report (ASR) or Remedial Action Exemption (RAE)- report within the timeframes as indicated by the authorization for reporting exemption from the FDA (quarterly, semiannually, annually or other time period).
3.		Assess the reportable file to determine if it includes all relevant information for the fields on the 3500A form (MDR report) or the required report type per Appendix C. ▪ See D00788856, <i>US MDR 3500A Completion Guidance</i> for a description of the fields as well as specific instructions on 3500A completion for literature. ▪ For additional guidance on event information to include and regional privacy laws, refer to 027-WI185, <i>Intake, Assessment and Complaint Determination</i>. NOTE: All reports submitted via a Medtronic complaint handling system include a legal disclaimer, which addresses efforts to obtain any missing information. A copy of this legal disclaimer is in D00788856. ▪ If relevant information becomes available at a later date, submit the information in a supplemental report (see Section 3 <i>Additional Information and Supplemental Regulatory Reports</i> of this document).
4.		Complete regulatory reports using FDA MedWatch Form 3500A or other required report type per Appendix C. ▪ See D00788856 for completing the 3500A Regulatory Report, including specific instructions for literature events.

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 13 of 25

Work Instruction

Medtronic

Step	Role	Action
5.		- Submit all regulatory reports electronically, in English, by the due date that corresponds with the necessary reporting timelines for the event. Refer to Appendix C for reporting timelines. - Retain a copy of the submitted report in the complaint file. - If a report is submitted late (i.e., after the due date, including initial and supplemental reports), refer to D00528427, <i>Regulatory Report Timeliness Evaluation</i> or local processes.

3. Additional Information & Supplemental Regulatory Reports

Step	Role	Action
1.	Operating Unit (OU) Complaint Unit	When additional information is received regarding the event, update information in complaint file in accordance with 027-WI185 and 027-WI188.
2.		Reassess the reportability decision(s) or regulatory reporting needs based on the applicable scenario below (previously reported or not previously reported to the FDA). - Examples of information requiring RD reassessment include but are not limited to: - New details or clarification regarding: the event, medical/surgical interventions, serial number, lot number, patient outcome, aware date or alleged failure mode. - RD re-assessment is not required for updates to patient demographics (e.g., weight, ID number, gender) or administrative details (e.g., physician name), unless the information changes details regarding the event or patient impact. For events <i>not</i> previously reported to the FDA or events being reassessed from not reportable to reportable: - Reassess RD to determine if changes are needed to the reportability decision or the reportability rationale. - The Aware Date is the date when the first Medtronic employee acquired information that reasonably suggested that a reportable event had occurred. Examples of aware date considerations include: - If the additional information received is changing the RD from not reportable to reportable, the Aware Date for the updated RD is the date Medtronic received the additional information that changed the RD to reportable.

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

Revision

P

Page 14 of 25

Medtronic

Step	Role	Action
		– If Product Analysis is the reason the RD is changing from not reportable to reportable, as analysis has identified a reportable event, the aware date for the RD is the analysis completion date. – If the complaint investigation provides information that requires a change to the RD from reportable to not reportable, the aware date for the RD is the investigation completion date. ▪ If the RD is now reportable, submit a regulatory report per Section 2 of this document. NOTE: If the event was originally deemed reportable, however prior to submission of the initial regulatory report additional information is received, such as a change in report type (for example from malfunction to serious injury), or additional details pertaining to the event, the original aware date that informed the reportable RD should be used. For events where a regulatory report to the FDA has already been submitted: ▪ Determine if a Supplemental Report is required. A Supplemental Report is required if <i>any</i> of the following situations are met: – The type of reportable event changed (ensure that 3500A Section H1: Report Type) is updated – Information relevant to the complaint (as defined by 027-WI185) or other information required for the 3500A form is obtained – It is determined that information relevant to the complaint (as defined by 027-WI185) was not sent on a previous FDA report for the complaint. – It is determined that previously submitted information is incorrect – Product analysis is completed – Investigation is completed and provides new information relevant for the complaint (e.g. updates requiring a change to previously submitted codes or report type) – Events which have been previously reported as an MDR and are in scope of an FCA which has been reported to FDA, but are not listed in the FCA plan require submission of a supplemental report if the event is applicable to the scope defined in the HRA/FCA.

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 15 of 25

Work Instruction

Medtronic

Step	Role	Action
		• The supplemental should indicate remedial action was initiated and reference to the 806 Report Number or Z-number should be included. Refer to D00788856. ▪ Determine if the <i>type</i> of reportable event needs to be updated. – Ex: The original information indicated the event was a reportable Malfunction. Additional information indicates that a medical intervention was needed to prevent permanent impairment. The event is now a reportable Serious Injury.
3.		If a supplemental report is needed, follow all requirements in Section 2 of this document, as well as the additional requirements below: ▪ Supplemental reports must be submitted within 30 calendar days of when the first Medtronic employee received the information that requires a supplemental report. ▪ Supplemental reports should only include new or changed information. ▪ Determine and select the appropriate type of supplemental report. Refer to D00788856 Appendix D for information on types of supplemental reports and the determined aware date.

4. Regulatory Inquiry

FDA may submit inquiries or request additional information from the Operating Unit or Region.

Step	Role	Action
1.	Operating Unit (OU) Complaint Unit	Process regulatory inquiries per D00224727, <i>Customer Quality Regulatory Inquiries</i> .

References

Number	Title
027-WI185	Intake, Assessment and Complaint Determination
027-WI188	Customer Communication
D00105362	Complaint Handling Field Corrective Action Management
D00224727	Customer Quality Regulatory Inquiries
D00528427	Regulatory Report Timeliness Evaluation

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 16 of 25

Work Instruction

Medtronic

Number	Title
D00788854	Combination Products/Drug Product and Tissue-based Product Complaint Process
D00788856	US MDR 3500A Completion Guidance
D00788855	Field Alert Reporting (FAR)
D00788857	United States FDA Reportability Guidance
D00995278	Medical Device Reporting Determination Related to Risk Assessments
D01175970	United States Medical Device Reporting Precedent Event Identification and Escalation
054-P044	Medical Device Reporting

Quality Records

Quality Record	Required Approvals
Complaint Record	None

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

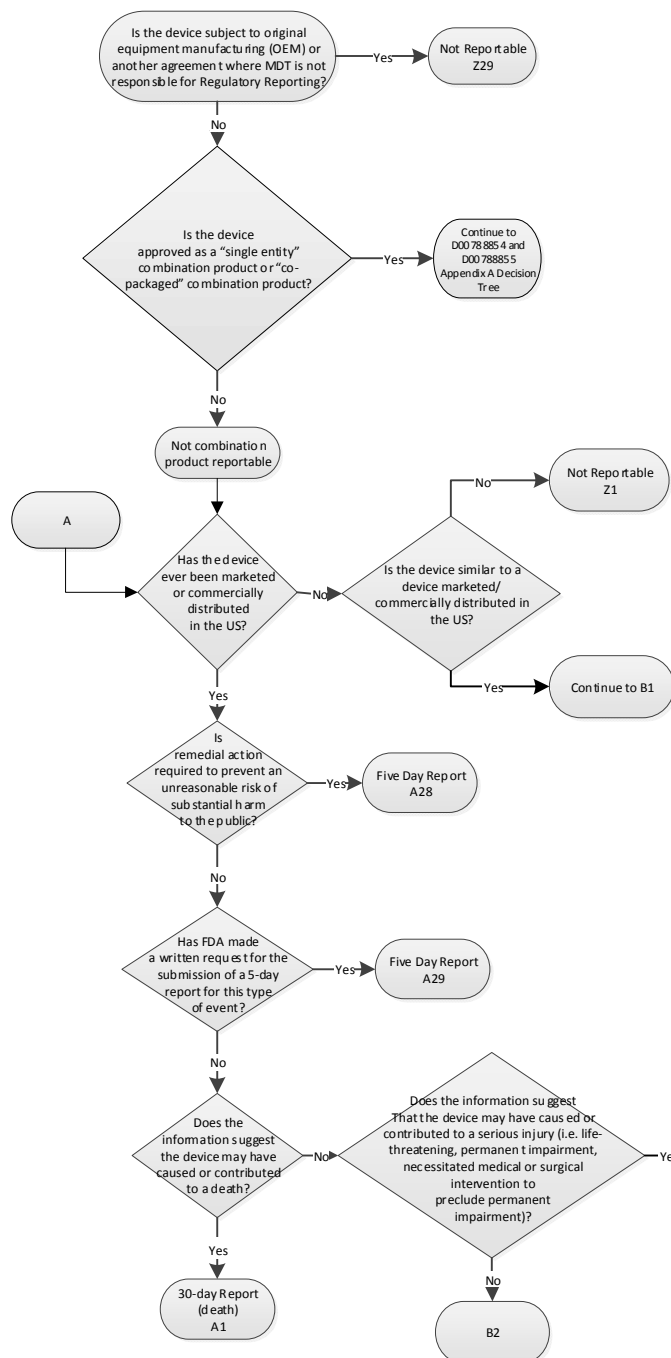
Revision

P

Page 17 of 25

Medtronic

Appendix A – US Reportability Decision Trees



*Serious Injury:

If the device may have caused or contributed¹ to an event that:

- Was life-threatening² (even if temporary in nature) or
- Resulted in permanent impairment³ or
- Required medical or surgical intervention⁴ to preclude permanent impairment

¹ Caused or Contributed:

A death or serious injury that was or may have been attributed to a medical device, or that a medical device was or may have been a factor in a death or serious injury, including events occurring as a result of:

- Failure
- Malfunction
- Improper or inadequate design
- Manufacture
- Labeling
- User Error

² Life-Threatening:

An adverse event where the patient was at substantial risk of dying at the time of the adverse event, or, continued use of the device might have resulted in the death of the patient. Determination of what is a substantial risk of death shall be made by a Person Qualified to Make a Medical Judgment.

³ Permanent Impairment:

Irreversible impairment or damage to a body structure or function, excluding trivial impairment or damage. Determination of what is trivial shall be made by a Person Qualified to Make a Medical Judgment. Data inputs into this decision may include, but are not limited to, the following:

- The risk assessment document assigned severity for the failure mode
- Hazard analysis and/or situation analysis for the failure mode
- Assessment of the severity of the event

⁴ Medical or Surgical Intervention:

Any deliberate attempt to modify a health outcome, including drugs, surgical procedures, use of other devices, behavioral treatments, and process-of-care changes (including hospitalization), excluding general first aid.

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

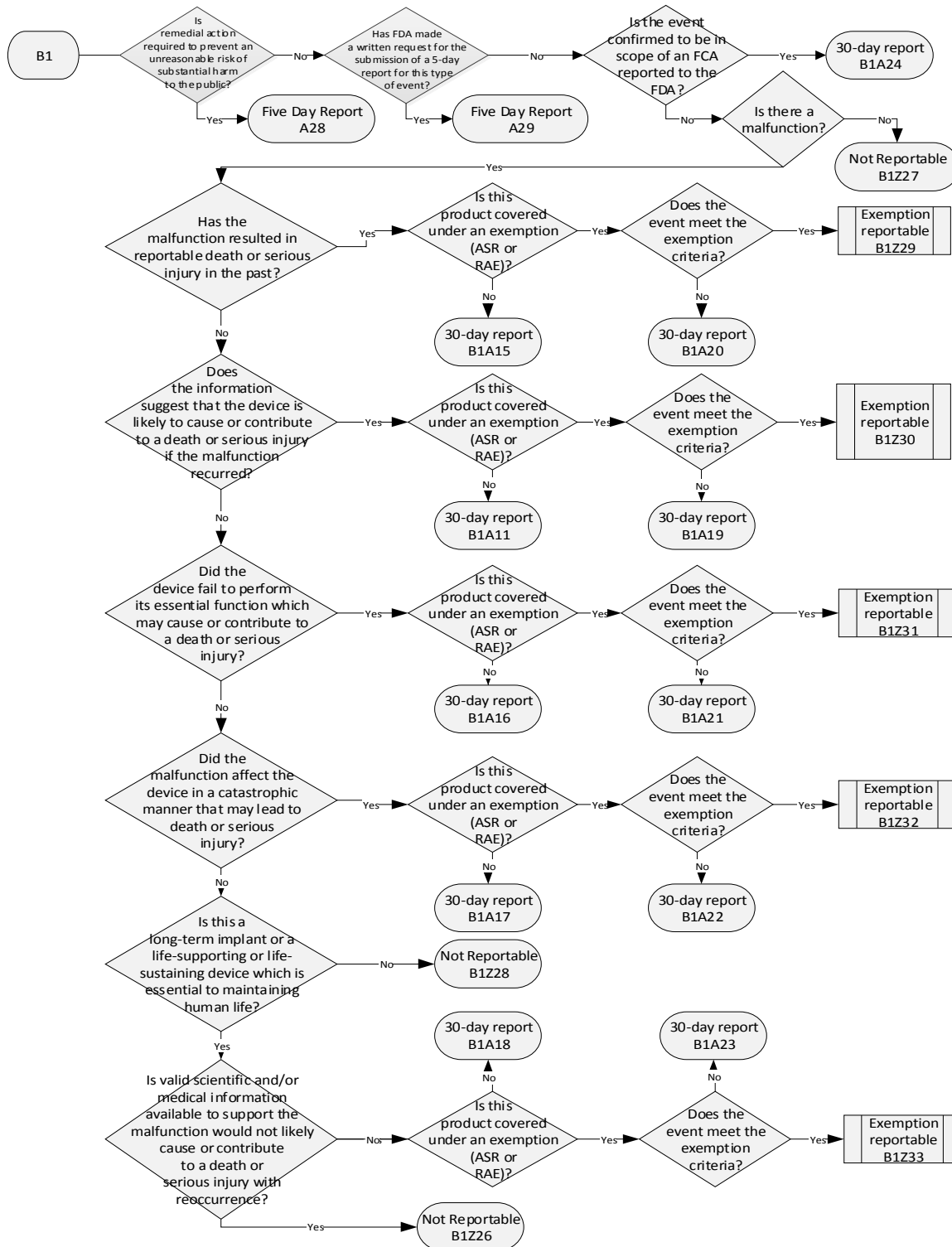
Revision

P

Page 18 of 25

Medtronic

Device similar to a device marketed/commercially distributed in the US



Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

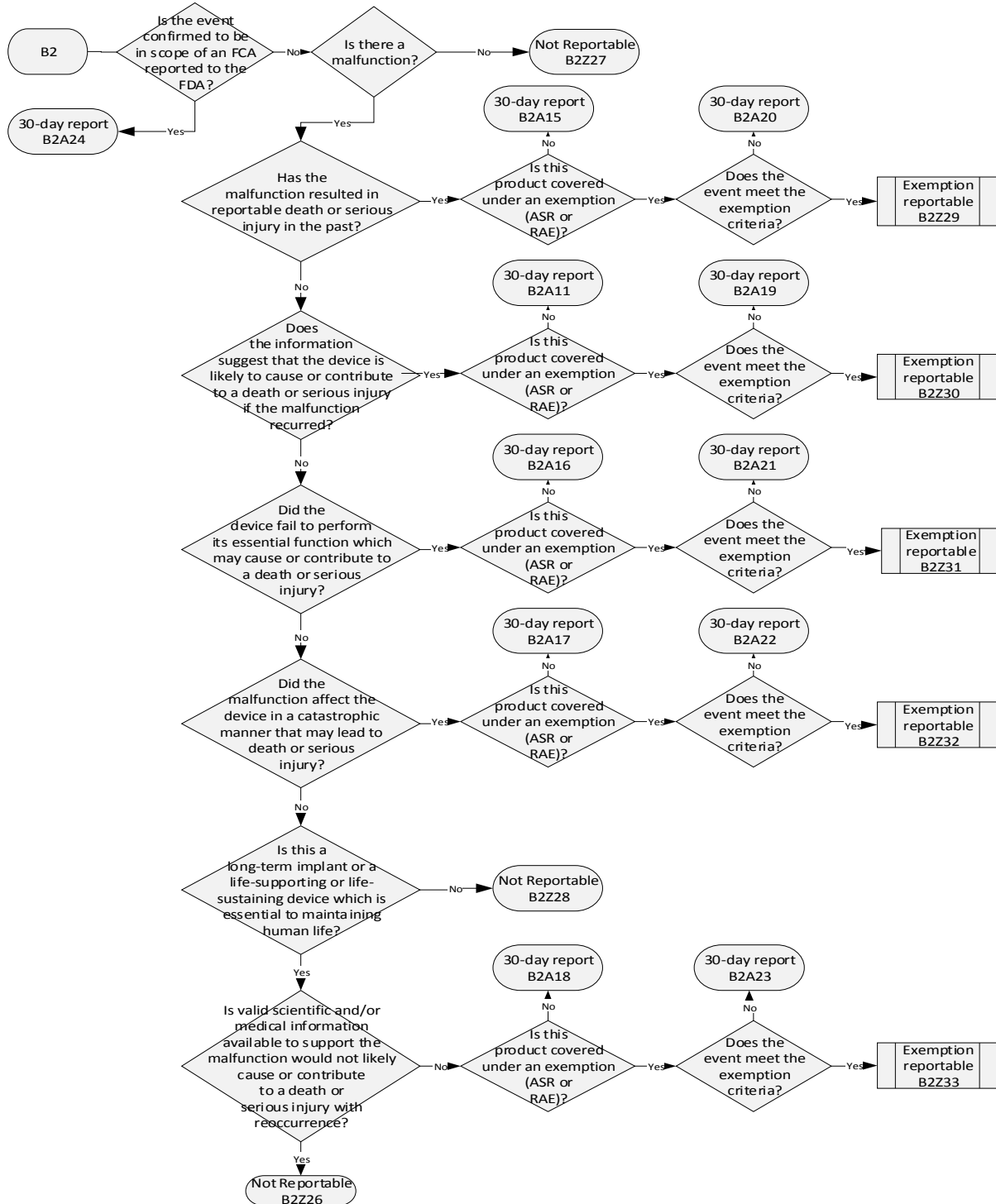
P

Page 19 of 25

Work Instruction

Medtronic

Device marketed/commercially distributed in the US



Appendix B – Reportability Decision Rationale Code Matrix

Code	Rationale
A1	Information suggests the device may have caused or contributed to a death
A2	Information suggests the device may have caused or contributed to the adverse event/serious injury
A3	Information suggests the device may have caused or contributed to the adverse event/serious injury
A28	Remedial action required to prevent an unreasonable risk of substantial harm to the public
A29	FDA made a written request for submission of a 5-day report for this type of event
BA11	BA11: Device malfunction that could cause or contribute to a death or serious injury if to recur
- B1A11 - B2A11	- B1A11: Similar device malfunction that could cause or contribute to a death or serious injury if to recur - B2A11: Device malfunction that could cause or contribute to a death or serious injury if to recur
BA15	BA15: Device malfunction where the chance of death or serious injury is not remote if to recur
- B1A15 - B2A15	- B1A15: Similar device malfunction where the chance of death or serious injury is not remote if to recur - B2A15: Device malfunction where the chance of death or serious injury is not remote if to recur
BA16	BA16: Device failed to perform its function that could cause/contribute to a death/serious injury
- B1A16 - B2A16	- B1A16: Similar device failed to perform its function that could cause/contribute to a death/serious injury - B2A16: Device failed to perform its function that could cause/contribute to a death/serious injury
BA17	BA17: Device malfunctioned in a catastrophic manner that may lead to a death or serious injury
- B1A17 - B2A17	- B1A17: Similar device malfunctioned in a catastrophic manner which may lead to a death or serious injury - B2A17: Device malfunctioned in a catastrophic manner that may lead to a death or serious injury
BA18	BA18: Device malfunction for a device that is a long-term implant or life supporting/sustaining
- B1A18 - B2A18	B1A18: Similar device malfunction for a device that is a long-term implant or life-supporting/sustaining

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 21 of 25

Work Instruction

Medtronic

Code	Rationale
	B2A18: Device malfunction for a device that is a long-term implant or life supporting/sustaining
BA19 - B1A19 - B2A19	BA19: Device malfunction that could cause or contribute to a death or serious injury if to recur - B1A19: Similar device malfunction that could cause or contribute to a death or serious injury if to recur - B2A19: Device malfunction that could cause or contribute to a death or serious injury if to recur
BA20 - B1A20 - B2A20	BA20: Device malfunction where the chance of death or serious injury is not remote if to recur - B1A20: Similar device malfunction where the chance of death or serious injury is not remote if to recur - B2A20: Device malfunction where the chance of death or serious injury is not remote if to recur
BA21 - B1A21 - B2A21	BA21: Device failed to perform its function that could cause/contribute to a death/serious injury - B1A21: Similar device failed to perform its function that could cause/contribute to a death/serious injury - B2A21: Device failed to perform its function that could cause/contribute to a death/serious injury
BA22 - B1A22 - B2A22	BA22: Device malfunctioned in a catastrophic manner that may lead to a death or serious injury - B1A22: Similar device malfunctioned in a catastrophic manner which may lead to a death or serious injury - B2A22: Device malfunctioned in a catastrophic manner that may lead to a death or serious injury
BA23 - B1A23 - B2A23	BA23: Device malfunction for a device that is a long-term implant or life supporting/sustaining - B1A23: Similar device malfunction for a device that is a long-term implant or life-supporting/sustaining - B2A23: Device malfunction for a device that is a long-term implant or life supporting/sustaining
BA24 - B1A24 - B2A24	BA24: Event is related to a reportable field corrective action (FCA) - B1A24: Similar device and event is related to a reportable field corrective action (FCA) - B2A24: Event is related to a reportable field corrective action (FCA)

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

Revision

P

Page 22 of 25

Medtronic

Code	Rationale
BZ26 - B1Z26 - B2Z26	BZ26: Scientific/medical info supports that the malfunction wouldn't cause/contribute to death/serious injury - B1Z26: Similar device but scientific/medical info supports the malfunction wouldn't cause/contribute to death/serious injury - B2Z26: Scientific/medical info supports that the malfunction wouldn't cause/contribute to death/serious injury
BZ27 - B1Z27 - B2Z27	BZ27: No information to reasonably suggest the device has malfunctioned (or caused/contributed to a death/serious injury if commercially marketed in the US). - B1Z27: Similar device but no information to reasonably suggest the device has malfunctioned. - B2Z27: No information to reasonably suggest the device has malfunctioned (or caused/contributed to a death/serious injury if commercially marketed in the US)
BZ28 - B1Z28 - B2Z28	BZ28: Information doesn't suggest that the malfunction would cause/contribute to a death or serious injury - B1Z28: Similar device but info doesn't suggest the malfunction would cause/contribute to a serious injury - B2Z28: Information doesn't suggest the malfunction would cause/contribute to a serious injury
BZ29 - B1Z29 - B2Z29	BZ29: This event is covered by exemption reporting criteria (i.e., ASR, RAE) - B1Z29: This event is covered by exemption reporting criteria (i.e., ASR, RAE, etc.) - B2Z29: This event is covered by exemption reporting criteria (i.e., ASR, RAE)
BZ30 - B1Z30 - B2Z30	BZ30: This event is covered by exemption reporting criteria (i.e., ASR, RAE) - B1Z30: This event is covered by exemption reporting criteria (i.e., ASR, RAE, etc.) - B2Z30: This event is covered by exemption reporting criteria (i.e., ASR, RAE)
BZ31 - B1Z31 - B2Z31	BZ31: This event is covered by exemption reporting criteria (i.e., ASR, RAE) - B1Z31: This event is covered by exemption reporting criteria (i.e., ASR, RAE, etc.) - B2Z31: This event is covered by exemption reporting criteria (i.e., ASR, RAE)
BZ32 - B1Z32 - B2Z32	BZ32: This event is covered by exemption reporting criteria (i.e., ASR, RAE) - B1Z32: This event is covered by exemption reporting criteria (i.e., ASR, RAE, etc.) - B2Z32: This event is covered by exemption reporting criteria (i.e., ASR, RAE)
BZ33 - B1Z33 - B2Z33	BZ33: This event is covered by exemption reporting criteria (i.e., ASR, RAE) - B1Z33: This event is covered by exemption reporting criteria (i.e., ASR, RAE, etc.) - B2Z33: This event is covered by exemption reporting criteria (i.e., ASR, RAE)
Z1	The product is not marketed nor is similar to a product marketed in the region governed by this regulation.

Medical Device Reporting Decision and Regulatory Reporting - United States

Work Instruction

054-WI198

Revision

P

Page 23 of 25

Medtronic

Code	Rationale
Z29	Medtronic is not responsible for regulatory reporting (OEM, supplier product, etc.)
Z30	This event is covered by exemption reporting criteria (i.e., ASR, RAE, etc.)

Appendix C – US Reporting Types and Timelines

Report Type	Timeline	NOTES	Report Form
Field Alert Report (FAR)	Within three (3) working days of the reportable event information being provided to any Medtronic employee or other individual working on behalf of Medtronic	Refer to D00788855, <i>Field Alert Reporting (FAR)</i>	Report Form FDA 3331a
Individual Death, Serious Injury, or Malfunction Reports where Event necessitates remedial action to prevent an unreasonable risk of substantial harm to the public health	Within 5 Working days of an individual with supervisory or management responsibilities, or a person within the designated complaint handling unit, becoming aware of event	Also required if the FDA has made a written request for the submission of 5-day reports for all events of the same nature that involve substantially similar devices for the time period specified in the request.	3500A/MedWatch or an FDA approved electronic equivalent
Individual Death, Serious Injury, or Malfunction Reports	Within 30 calendar days of becoming aware of event	None	3500A/MedWatch or an FDA approved electronic equivalent
Supplemental Reports	Within 30 calendar days of becoming aware of the new information.	None	3500A/MedWatch or an FDA approved electronic equivalent.

Medical Device Reporting Decision and Regulatory Reporting - United States

054-WI198

Revision

P

Page 24 of 25

Work Instruction

Medtronic

Report Type	Timeline	NOTES	Report Form
Alternative Summary Reporting (ASR)	Quarterly for events and devices granted this exception (see Operating Unit authorization/ approval) unless otherwise specified by FDA	As Approved by the FDA for the business (See Operating Unit authorization/approval)	As Approved by the FDA for the business (See Operating Unit authorization/ approval)
Remedial Action Exemption (RAE)	Quarterly for events and devices granted this exception (see Operating Unit authorization/ approval) unless otherwise specified by FDA.	As Approved by the FDA for the business (See Operating Unit authorization/approval)	As Approved by the FDA for the business (See Operating Unit authorization/ approval)
Field Corrective Actions (FCA)	Within 30 calendar days of becoming aware that the event was in-scope of the Global FCA Plan. The aware date can be taken as the approval date of the FCA plan.	Apply to complaints included in the FCA Plan 806 complaint report list See D00105362	3500A/MedWatch or an FDA approved electronic equivalent

Appendix D – Basic Requirements for Importers and Distributors

Importers are required to submit MDR reportable events as follows:

- Reports of *device*-related deaths and serious injuries must be reported to FDA and the manufacturer
- Reports of *device*-related malfunctions must be reported to the manufacturer

Importers and Distributors are also required to:

- Develop, *maintain*, and implement written MDR procedures
- Maintain files related to medical device adverse events

NOTE: These requirements are in effect unless the Importer/Distributor applies and is granted an exemption from FDA.